Ayonic Global Terms of Service

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SOP Number	[Insert Number]
Version	[Insert Version]
Effective Date	[MM/DD/YYYY]
Review Date	[MM/DD/YYYY]
Prepared By	[Name, Title]
Approved By	[Name, Title]

These Ayonic Global Terms of Service (the “Terms” or “Terms of Service”) form a legally binding agreement between you, the user of the Platform (“you” or “your”), and Ayonic, Inc., together with its affiliates (“Ayonic,” “we,” “us,” or “our”). These Terms govern your use of Ayonic’s websites), mobile applications (the “Apps”), and related services, information, and communications (together, the “Platform” or “Ayonic Platform”).

All personal data you provide to the Platform, or that we collect about you, is handled in accordance with our Global Privacy Policy (the “Privacy Policy”).

These Terms, together with the Privacy Policy and the Ayonic Happiness Pledge (the “Happiness Pledge”) applicable in the country where a task or service is performed, collectively form the “Agreement.” The Agreement also includes any other supplemental policies or terms referenced within these Terms or made available to you, all of which are incorporated by reference and apply to your use of the Platform.

For U.S. and Canadian users: Section 24 contains an arbitration agreement, which, with limited exceptions, requires that disputes and claims against Ayonic be resolved through binding and final arbitration on an individual basis. Please read this section carefully, as it affects your legal rights, including, where applicable, your right to opt out of arbitration.

By accessing or using the Platform, or by acknowledging these Terms of Service, you confirm that you have read, understood, and agree to be bound by the Agreement, including all incorporated terms.

If you do not agree to these terms, you may not access or use the Platform.

The Platform.

Ayonic is an online platform that connects Clients with Providers for short-term services (Tasks). Clients are individuals or businesses seeking services, while Providers are independent professionals or businesses offering those services directly to Clients.

Providers operate independently:

1. They run their own business, set their own rates, and use their own tools and materials.
2. They may serve other clients or offer services on other platforms.
3. They have full discretion to accept or decline any Task.
4. Any labels such as “verified” or “trusted” indicate that a Provider has completed certain steps on the Platform. These labels are informational only and do not guarantee a Provider’s skills, qualifications, or reliability.
5. While Ayonic provides tools to help Clients connect with Providers, Clients are responsible for selecting the appropriate Provider and confirming they have the necessary qualifications for the Task.

Ayonic Role.

The Platform is not an employment agency, and Ayonic is not an employer of any User. Users are not employees, partners, representatives, agents, joint venturers, independent contractors, or franchisees of Ayonic.

Users acknowledge and agree that:

1. Ayonic does not:

Perform Tasks or employ anyone to perform Tasks.Supervise, direct, control, or monitor Providers' work (including work location, hours, or terms), or provide tools, supplies, or reimburse any expenses.

Have control over the quality, timing, legality, or completion of Tasks, or over Users' actions, integrity, competence, qualifications, communications, or reviews and ratings.

Service Agreements between Clients and Providers do not create any employment, agency, or other relationship with Ayonic, nor any responsibility or liability for Ayonic. Users do not have authority to act on behalf of, bind, or make representations for Ayonic, including modifying any fees charged through the Platform.

Ayonic is not responsible for workers' compensation, taxes, or withholdings, including but not limited to sales tax, VAT, unemployment or employment insurance, pension contributions, disability insurance, payroll taxes, or income tax. Providers are fully responsible for all applicable taxes, social contributions, and compliance with local labor laws for themselves and any individuals they engage in performing Tasks. Each User is responsible for properly classifying their workers under applicable legal requirements.

License.

Subject to your compliance with the terms of the Agreement, including these Terms and Ayonic's Acceptable Use Policy, Ayonic grants you a limited, non-exclusive, non-transferable, and revocable license to:

1. Access and use the Platform in the locations and territories where it is available

2. Download and use the App on your personal device solely to access and use the Platform.

3. Access and view content, information, and materials made available on the Platform, for your personal use and for the intended purposes of the Platform.

4. All Users must comply with the Acceptable Use Policy when using the Platform. You may not copy, download, use, redesign, reconfigure, reverse engineer, or retransmit any part of the Platform without Ayonic's prior written consent. Any rights not expressly granted to you by Ayonic are reserved.

User Representations and Warranties.

By accessing or using the Platform, you represent and warrant that you:

1. Will comply fully with the terms of the Agreement, including these Terms, the Acceptable Use Policy, and any other Supplemental Terms.
2. Meet the minimum age requirements in your jurisdiction and are legally capable of entering into binding contracts.
3. Have the right, authority, and capacity to enter into the Agreement, including the authority to act on behalf of and bind any company or organization you represent.
4. Will only request and/or perform Tasks in countries where the Platform is available.
5. Will respect the privacy, property, and data protection rights of other Users, and will not record (video, audio, or otherwise) any Task or interaction with any User or Ayonic without prior written consent from Ayonic and/or the relevant User.
6. Will act professionally and responsibly in all interactions with other Users and fulfill any commitments you make, including communicating clearly and promptly through the Platform and being present or available at the agreed-upon time.
7. Will use any third-party payment service provider approved by Ayonic to make or receive payment for Tasks.
8. Will use your legal name or legal business name and maintain an up-to-date profile photo.
9. Will comply with all applicable local, state, provincial, national, or international laws while using the Platform.

10. Will not use the Platform for the purchase or delivery of alcohol, controlled substances, or any illegal goods or services.
11. Will ensure that all communications regarding Tasks—including scoping, payments, and any related questions—remain on the Platform before, during, and after the Task.

Additional Tasker Representations and Warranties.

If you are a Provider, you further represent and warrant that, in your access to and use of the Platform, you:

1. Are operating as a sole proprietor, partnership, limited liability company, limited liability partnership, corporation, or other business entity when using the Platform.
2. Are actively engaged in an independently established business of the same nature as the services you perform for Clients through the Platform and maintain an independent clientele.
3. Have the unrestricted right to work in the jurisdiction where you perform Tasks.
4. Have, and will maintain at your own expense, any licenses, permits, or registrations required by applicable laws for performing Tasks (including, as applicable, business licenses, tax registrations, or contractor licenses.
5. Have, and will maintain, all insurance required to operate your business and perform the Tasks.
6. Will respond to invitations promptly, provide timely and high-quality services as agreed with Clients, only offer and perform Tasks for which you have the necessary expertise, and carry out Tasks safely and as agreed.
7. Will promptly notify Ayonic in writing if you acquire any potentially relevant criminal convictions (excluding minor traffic offenses such as parking or speeding tickets) during your use of the Platform.

Intellectual Property Rights.

The Platform, including all components, content, and materials displayed or made available on it—such as the Marks(defined below), text, graphics, editorial content, data, formatting, graphs, designs, HTML, photographs, music, sounds, images, software, videos, typefaces, tools, interfaces, and other content (including the selection, coordination, arrangement, enhancement, and all intellectual property rights in the foregoing) (collectively, "Proprietary Material")—is owned by Ayonic, excluding User Generated Content and any third-party websites accessible through the Platform. Proprietary Material is protected by domestic and international laws, including copyright, patent, and other intellectual property laws. Any use of Proprietary Material not expressly permitted by this Agreement is strictly prohibited.

The service marks, logos, and trademarks of Ayonic (the "Marks"), including but not limited to those for Ayonic and Ayonic for Good, are owned by Ayonic and may not be used by Providers or other Users without Ayonic's express prior written consent. Any other trademarks, service marks, logos, or trade names displayed on the Platform are the property of their respective owners and may not be used without their prior written permission.

Links to Third-Party Websites.

The Platform may include links—such as hyperlinks, framed external websites, or advertisements (including banner ads)—to third-party websites, which are maintained by parties over which Ayonic has no control.

These links are provided for reference and convenience only and do not constitute Ayonic's endorsement, warranty, guarantee, or association with those websites, their content, or their operators. It is your responsibility to evaluate the content and usefulness of information obtained from any third-party website. Your access to and use of third-party websites is governed by that website's own terms of use and privacy policy and is done at your own risk.

Ayonic is not obligated to monitor, review, limit, or remove links to third-party websites but reserves the right to do so at its sole discretion. Ayonic expressly disclaims any responsibility or liability for third-party links or websites, including any access, use, products, services, or claims arising therefrom, and is not a party to any transaction between you and any third-party providers.

You expressly release Ayonic from all liability arising from your access to or use of any third-party websites.

Copyright Complaints and Copyright Agent.

If you believe, in good faith, that any content on or linked through the Platform infringes your copyright or other intellectual property rights, you may submit a written notice to Ayonic's designated Copyright Agent that includes the following details:

1. Description of the copyrighted work you believe has been infringed. Please include the URL (or other specific location on the Platform) where the allegedly infringing material appears, with enough detail for Ayonic to locate it, along with an explanation of why you believe infringement has occurred.
2. Description of the location of the original or authorized version of the copyrighted work (for example, the URL where it is posted, or the title and author of a published work).
3. Your contact information, including your full name, mailing address, telephone number, and email address.
4. A good-faith statement by you that the disputed use of the material is not authorized by the copyright owner, its agent, or the law.
5. A statement under penalty of perjury that the information in your notice is accurate and that you are the copyright owner or are authorized to act on behalf of the copyright owner.
6. Your physical or electronic signature as the copyright owner, or as the person authorized to act on behalf of the copyright owner.

Disclaimer of Warranties.

Use of the Platform Is at Your Own Risk

The Platform and the technology underlying it are provided on an "as is" and "as available" basis, without warranties or conditions of any kind, whether express or implied. This includes, but is not limited to, any implied warranties or conditions of merchantability, quality, fitness for a particular purpose, provision of services in a good and workmanlike manner, compliance with applicable laws, statutes, ordinances, regulations, or codes, and/or non-infringement—all of which are expressly excluded.

Without limiting the foregoing, Ayonic, together with its parents, affiliates, licensors, and their respective directors, officers, shareholders, agents, investors, subsidiaries, attorneys, representatives, insurers, employees, successors, and assigns (collectively, the "Affiliates", and together with Ayonic, the "Ayonic Parties") make no representation, warranty, or guarantee of any kind regarding the Platform or its operation.

Limitation of Liability

You acknowledge and agree that Ayonic is only willing to provide the Platform if you agree to certain limitations of our liability to you and third parties, as set out in this Section and elsewhere in the Agreement.

THEREFORE, YOU ACKNOWLEDGE AND AGREE THAT, TO THE EXTENT PERMITTED BY APPLICABLE LAW, UNDER NO CIRCUMSTANCES WILL THE AYONIC PARTIES OR THEIR CORPORATE PARTNERS BE RESPONSIBLE OR LIABLE (WHETHER IN CONTRACT, WARRANTY, TORT OR OTHERWISE) FOR, AND SUCH PARTIES EXPRESSLY DISCLAIM, ANY AND ALL LIABILITY, CLAIMS, DEMANDS, DAMAGES (WHETHER DIRECT, INDIRECT, INCIDENTAL, ACTUAL, CONSEQUENTIAL, ECONOMIC, SPECIAL OR EXEMPLARY (INCLUDING, BUT NOT LIMITED TO, LOST PROFITS, LOSS OF DATA OR GOODWILL, SERVICE INTERRUPTION, COMPUTER DAMAGE, SYSTEM FAILURE, FAILURE TO STORE ANY INFORMATION AND THE COST OF SUBSTITUTE PRODUCTS OR SERVICES), EXPENSES (INCLUDING ATTORNEYS' FEES AND COSTS), LOSSES, GOVERNMENTAL OBLIGATIONS, SUITS, AND/OR CONTROVERSIES OF EVERY KIND AND NATURE, KNOWN AND UNKNOWN, SUSPECTED AND UNSUSPECTED, DISCLOSED AND UNDISCLOSED (COLLECTIVELY, "LIABILITIES") ARISING OUT OF OR IN ANY WAY RELATED TO OR CONNECTED WITH THE PLATFORM OR YOUR OR ANY OTHER PARTY'S USE OF OR INABILITY TO USE THE PLATFORM, EVEN IF ADVISED OF THE POSSIBILITY OF THE SAME. TO THE EXTENT PERMITTED BY LAW, YOU HEREBY RELEASE THE AYONIC PARTIES AND THEIR CORPORATE PARTNERS FROM THE FOREGOING.

Nothing in the Agreement excludes or limits any liability or warranty that, by applicable law, may not be limited or excluded. Additionally, some jurisdictions do not allow the exclusion of certain warranties or limitation of incidental or consequential damages; in such cases the above limitations may not apply to you in their entirety.

IF, NOTWITHSTANDING THE FOREGOING EXCLUSIONS, IT IS DETERMINED THAT THE AYONIC PARTIES OR THEIR CORPORATE PARTNERS ARE LIABLE FOR DAMAGES, IN NO EVENT WILL THE AGGREGATE LIABILITY, WHETHER ARISING IN CONTRACT, TORT, STRICT LIABILITY OR OTHERWISE, EXCEED: (A) IF YOU ARE A CLIENT, THE TOTAL FEES PAID BY YOU TO AYONIC IN THE 6 MONTHS PRIOR TO THE TIME SUCH CLAIM AROSE; AND (B) IF YOU ARE A TASKER, THE TOTAL PAYMENTS PAID TO YOU BY CLIENTS IN THE 6 MONTHS PRIOR TO THE TIME SUCH CLAIM AROSE, TO THE EXTENT PERMITTED BY APPLICABLE LAW.

Notwithstanding the foregoing:

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For All Residents of a Country Outside of the United States: Regardless of any other provision in the Agreement excluding or limiting Ayonic's liability, nothing in these Terms excludes or limits Ayonic's warranties and liability for: (a) death or personal injury caused by Ayonic; or (b) Ayonic's gross negligence or wilful misconduct.

For Residents of Germany only: Notwithstanding anything to the contrary in this Section, Ayonic is only liable for breach caused by wilful misconduct or gross negligence of its cardinal, material contractual obligations. In the event of initial impossibility, Ayonic may only be liable if it was aware of the impediment to performance prior to entering the Agreement, was unwilling due to gross negligence to remedy that impediment, and a cardinal obligation was breached because of that initial impossibility.

Indemnification.

The indemnification obligations of Users are outlined below in this Section. Ayonic reserves the right, at its sole discretion, to assume the exclusive defence and control of any matter otherwise subject to your indemnification. In no event shall you settle any claim or matter without the prior written consent of Ayonic.

A. Client Indemnification

If you are a Client, you agree to indemnify, defend, and hold harmless Ayonic and its Affiliates from and against all liabilities, losses, damages, claims, costs, and expenses (collectively, "Liabilities") arising out of or related to:

Your use of, inability to use, or participation on the Platform;

1. Your breach or violation of the Agreement;
2. Your violation of any applicable law or infringement of the rights of any User or third party;
3. Your use of any third-party links or websites made available on the Platform;
4. Any User Generated Content and/or Feedback submitted by you or through your account, including, without limitation, where such content infringes the intellectual property rights of a third party or is otherwise unlawful; and
5. The acts or omissions of any Client Agents.

B. Tasker Indemnification

If you are a Tasker, you agree to indemnify, defend, and hold harmless Ayonic and its Affiliates from and against all Liabilities arising out of or related to:

1. Your use of, inability to use, or participation on the Platform;
2. Your performance of, participation in, or inability to perform Tasks, as well as any issues relating to payment therefor;
3. Your breach or violation of the Agreement;
4. Your violation of any applicable law or infringement of the rights of any User or third party;
5. Any User Generated Content and/or Feedback submitted by or about you, or through your account, including, without limitation, where such content infringes the intellectual property rights of a third party or is otherwise unlawful; and
6. The acts or omissions of any Tasker Assistants.

Dispute Resolution

To help expedite resolution and minimize the cost of any dispute, controversy, or claim arising out of or relating to your use of the Platform, your relationship with Ayonic, Tasks, or this Agreement (including any prior versions) (collectively, a "Dispute"), you are encouraged to first seek an amicable resolution directly with Ayonic before initiating any out-of-court settlement process (such as mediation or arbitration) or formal court proceeding (except as otherwise provided in Section 24).

Informal negotiations will begin once written notice of the Dispute has been provided. For such notices, your designated address will be the mailing address linked to your account, with a copy sent to the email address you have registered with Ayonic.

Consent to Electronic Signatures.

By using the Platform, you agree that:
1. All transactions may be conducted electronically through the Platform;
2. Your electronic signature carries the same legal effect, validity, and enforceability as a handwritten signature;
3. Actions such as clicking a button, selecting an icon, or using any input device to indicate consent or approval will be treated as your signature as if signed in writing; and
4. No certification authority or third-party verification is required to validate your electronic signature, and the absence of such certification does not affect its enforceability.

General Provisions

1. Relationship of the Parties

Nothing in this Agreement, nor your use of the Platform, creates or is intended to create any agency, partnership, joint venture, employment, or franchiser-franchisee relationship between you and Ayonic. Users have no authority to act on behalf of Ayonic, make representations for Ayonic, or bind Ayonic in any manner.

2. Entire Agreement

These Terms, together with any additional terms referenced or incorporated by link, represent the complete and exclusive agreement between you and Ayonic regarding your use of the Platform. They supersede all prior or contemporaneous agreements, proposals, or communications related to the Platform, unless expressly stated otherwise (for example, in the Arbitration Agreement in Section 24(A)). However, these Terms do not override any separate agreements you may have with Ayonic concerning other services or subject matter. The provisions of this Agreement shall be interpreted in a way that ensures they remain valid, lawful, and enforceable.

3. Severability; Waiver

Except for the “Agreement Prohibiting Class Actions and Non-Individualized Relief” provision in Section 24(A), if any part of this Agreement is found to be invalid, illegal, or unenforceable, then:

1. that provision shall be modified or adjusted to the extent necessary to make it valid, legal, and enforceable; or
2. if it cannot be modified, it will be removed from the Agreement without affecting the validity or enforceability of the remaining provisions.

Failure by Ayonic to enforce any part of this Agreement shall not be considered a waiver of that provision or of Ayonic's rights.

You acknowledge and agree that Ayonic may assign or transfer this Agreement without requiring your consent. In such cases, Ayonic will notify you, and where required by law, you may choose to terminate the Agreement and stop using the Platform. From the effective date of such assignment:
1. Ayonic will be released from all obligations or liabilities arising after that date; and
2. the assignee will assume Ayonic's role in performing under this Agreement.

You may not assign or transfer this Agreement without prior written approval from Ayonic. Any attempt to do so without approval shall be null and void. This Agreement shall benefit Ayonic, its successors, and permitted assigns.

All provisions of this Agreement that, by their nature, should survive its expiration or termination shall remain in effect even after your use of the Platform ends.

This Agreement has been drafted in English. In the event of any conflict between the English version and a translated version, the English version shall control.

Jurisdiction-specific Provisions, including Dispute Resolution.

The terms in this Section apply to Users in the specified jurisdictions. If there is any conflict or inconsistency between these Global Terms of Service and the jurisdiction-specific provisions below, the jurisdiction-specific provisions will take precedence and govern for Users in those jurisdictions.

Users in Germany may bring any claim related to the Agreement before a German court at any time and are not required to notify Ayonic of any disputes beforehand.

Acknowledgement and Consent.

I ACKNOWLEDGE THAT I HAVE READ AND UNDERSTAND THE TERMS OF SERVICE, THE PRIVACY POLICY, THE ACCEPTABLE USE POLICY, THE HAPPINESS PLEDGE, AND ALL OTHER TERMS INCORPORATED BY REFERENCE, AND AGREE THAT MY USE OF THE PLATFORM CONSTITUTES MY ACCEPTANCE AND AGREEMENT TO BE BOUND BY THESE TERMS AND CONDITIONS.

About Ayonic

At Ayonic, we're redefining how people connect, collaborate, and get things done. Our platform is more than just a space for tasks—it's a vibrant ecosystem where clients, creators, and service providers come together to turn ideas into action, skills into results, and opportunities into achievements.

We believe in making productivity simple, seamless, and safe. Every interaction on Ayonic is built on trust, transparency, and accountability. From safeguarding your personal and intellectual property to ensuring fair and secure transactions, we design our platform so you can focus on what matters—whether that's completing a task, finding the right expert, or delivering top-notch service.

Our mission is to empower users to take control of their time and talents. Clients can easily find skilled professionals who bring expertise and creativity to every project, while Taskers have the freedom to showcase their abilities, grow their reputation, and earn with confidence. We champion fairness, clarity, and a user-first approach in everything we do.

At the heart of Ayonic is a commitment to connection. We bridge the gap between ambition and execution, making it easier than ever to achieve goals, discover opportunities, and build meaningful collaborations. We're here to help you work smarter, accomplish more, and turn everyday challenges into success stories—one task at a time. Ayonic is more than a platform—it's a community that values innovation, trust, and growth. We're here to support every user's journey, celebrate every achievement, and make every experience on our platform feel effortless, empowering, and exciting.

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